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Right-to-housing law leads Dems' bills to address homelessness

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Before the coronavirus sickened nearly 150,000 Californians and crashed the economy, Gov. Gavin Newsom and state lawmakers pledged to solve what was just months ago the state's most pressing crisis: homelessness.

Assembly Democrats recommitted themselves last week to that promise, passing bills that would create a right-to-housing law by 2026, speed construction of emergency shelters and provide more oversight of how government agencies spend money meant to get people off the streets.

This week, they're expected to vote on another bill that would commit $2 billion every year for homelessness. Its supporters are asking for the ongoing funding even as the state faces a projected $54 billion deficit that threatens other social services programs.

The Democrats argue that solving the issue has never been more urgent, given COVID-19's impact on vulnerable populations, which include the homeless.

"We all know how dire the crisis has been," said Assemblyman David Chiu, D-San Francisco, who serves as chairman of the Assembly Committee on Housing and Community Development. "If we don't house people, we will intensify virus spread."

Here's what's in their plan:

Billions for local homelessness solutions

Recent budgets from Newsom and former Gov. Jerry Brown committed hundreds of millions of dollars to homelessness through one-time funding allocations. Assembly Democrats say those non-renewing allocations aren't enough to make a lasting impact.

Assembly Bill 3300, which is expected to come up for a vote this week, would set aside $2 billion annually in the state budget for cities, counties, local homelessness organizations and affordable housing developers to shore up units for low-income families, offer rent-assistance programs and provide support services for unsheltered Californians.

"We simply cannot keep doing the same things over and over and expect different outcomes," said Assemblyman Miguel Santiago, D-Los Angeles, after Los Angeles County reported on Friday a 13 percent spike in homelessness.

The 2019-2020 budget included $650 million for local homeless strategies, as well as $250 million for cities and counties to plan for new housing.

Newsom's 2020-2021 proposal includes $750 million in funding for local governments to use for similar efforts. Given economic disintegration caused by the virus that's expected to dissolve much of the state's reserves, the plan relies on federal dollars for the effort.

That money is proposed for local jurisdictions to transition hotel and motel rooms that were secured at the start of the pandemic for vulnerable homeless people into longer-term shelter.

Right to housing

Assemblywoman Autumn Burke, D-Marina del Rey, has been relentless in advocating for a right-to-housing law. The goal is to provide emergency housing for homeless families, and to offer services to help them make rent if they're at risk of losing their homes.

Burke had a setback in January when a similar proposal to the one that passed the Assembly last week died in the Appropriations Committee led by Assemblywoman Lorena Gonzalez, D-San Diego. At the time, Burke said she was "1,000 percent" shocked.

The two women and Chiu teamed up on a fresh bill that would, by 2026, afford every child and family in California the right to "safe, decent and affordable housing."

The measure, Assembly Bill 2045, builds off New York City's right-to-shelter mandate. New York spends $1.7 billion annually on housing for its unsheltered homeless population, according to a summary of Burke's proposal by legislative staff.

Emergency shelter construction

Local governments would be able to streamline emergency housing construction under Assembly Bill 2553, which would expand a 2017 pilot program that allows some larger cities to declare a shelter crisis so they could more quickly build homeless housing.

Assemblyman Phil Ting, D-San Francisco, said the path to building more homeless shelters in California is by affording cities and counties construction flexibility.

"This is a great way to get more shelters built in a faster manner," Ting said during an Assembly floor session Wednesday.

More accountability

Chiu and Santiago wrote another bill that would task the Homeless Coordinating and Financing Council, which helps build and implement homelessness policies, with conducting a "gaps and needs" analysis to pinpoint where homeless solutions are falling short.

From there, the state and local governments would have to build a strategy to reduce homelessness by 90 percent within eight years. The bill would create a homelessness inspector general who could bring a public right of action against local jurisdictions that fail to submit their ideas.

Assemblywoman Luz Rivas' bill would additionally establish an Office to End Homelessness to be led by a secretary on housing insecurity and homelessness. The new office and position would make it easier to track the different programs and money spent being spent for the emergency, Rivas, D-Los Angeles, said.

"I truly believe we have the most dedicated and brightest individuals working on homelessness in this state," Rivas said Wednesday. "However, they need help to address an incredibly fragmented state system."

Similarly, Assemblyman Jesse Gabriel, D-Encino, wants state-funded homelessness programs to report each year how comprehensive data that include how much they're spending and how many people they're serving.

"We must demand more accountability and transparency from those who receive public funding, so that we can focus our efforts on the most impactful responses," Gabriel said via press release. "The current situation and lack of progress in many cities and counties is heartbreaking and unacceptable. California residents, taxpayers, businesses, and those suffering on our streets deserve better."

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